

GZ: 2020-0.829.566 dated March 23, 2021 (Case Number: DSB-D124.2701)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the joint decision regarding the data protection complaints of Mr. Richard A*** (complainant) dated June 22, 2020, amended by submission dated August 24, 2020, recorded under D124.2702, as well as from June 29, 2020, amended by submission dated September 2, 2020, recorded under D124.2701, against the N*** religious community in Austria (respondent) due to the alleged violation of the right to confidentiality, the alleged violation of the right to information, the alleged violation of the right to deletion, and the alleged violation of the right to object as follows:

1. The complaint regarding the alleged violation of the right to confidentiality is dismissed.
2. The complaint regarding the alleged violation of the right to information is dismissed.
3. The complaint regarding the alleged violation of the right to deletion is dismissed.
4. The complaint regarding the alleged violation of the right to object is dismissed.

Legal bases: Art. 15, Art. 17, Art. 21, Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 77 para. 1, and Art. 91 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; § 1 para. 1 and para. 2 as well as § 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 15 StGG on the general rights of citizens, RGBI. No. 142/1867; Art. 9 of the European Convention on Human Rights (ECHR), Federal Law Gazette No. 210/1958 as amended; Art. 10 of the Charter of Fundamental Rights of the European Union (CFR), OJ No. C 202 of June 7, 2016, p. 389; Art. 6 Treaty on European Union (TEU), Federal Law Gazette III No. 85/1999.

GROUNDS

A. Submissions of the parties and procedural history

1. The complainant asserted in his complaint recorded under GZ D124.2701 dated June 29, 2020, amended by submission dated September 2, 2020, that he had been violated in his right to confidentiality by the respondent. In his complaint recorded under GZ D124.2702 dated June 22, 2020, amended by submission dated August 24, 2020, the complainant further asserted that he had been violated in his right to information, his right to deletion, and his right to restriction of processing by the respondent.

Regarding the alleged violation of the right to confidentiality, the complainant stated that the respondent would process his data without his consent. At the time of his baptism, he was not yet 14 years old and the baptism did not constitute an oral contract or consent to unlimited data processing. Furthermore, he had not granted the respondent consent for data processing in 2018. In **** 2020, the respondent then publicly announced in a Zoom meeting, in front of an estimated 60 to 80 people, that he was no longer a member of the N***, although he had previously objected to this multiple times. In addition, he had also objected to any internal forwarding of documents concerning him.

Regarding the alleged violation of the right to information, the complainant stated that he had approached the respondent with a request for information, to which the respondent had not fully complied.

Regarding the alleged violation of the right to deletion, the complainant explained that he had approached the respondent with a deletion request, but the respondent had not responded to the request.

2. In their statements dated October 26, 2020, and December 1, 2020, the respondent initially stated that the complainant had been baptized as a member of the N*** on May 12, 1990, and had also been a member of the religious community until *4.*7.2020. As such, he had been actively involved for many years and had also held the spiritual office of [Note from the editor: exact designation not reproduced for pseudonymization reasons, further marked abbreviations for the same reason] from *3.*4.2011 to *7.*3.2015. In **** 2020, a religious law ****committee **** dealt with whether the complainant had

committed a serious sin and whether there was no **** remorse. The ****committee decided that
This would be the case and therefore, at the end of ** 2020, during a meeting in K***stadt, the
legally required announcement was made that the complainant was no longer a member of N***. **

Regarding the alleged violation of the right to confidentiality, the respondent summarized that it was entitled to process the complainant's data in accordance with Art. 6 para. 1 lit. c and f as well as Art. 9 para. 2 lit. d and f of the GDPR and that, furthermore, the arrangement of membership relations constituted an internal matter of a religious community that was exempt from the assessment of state authorities. The announcement of the departure of a former member from the religious community during a service would also fall under the internal affairs of a religious community and represent a protected religious practice according to Art. 15 StGG, Art. 9, 10, 11, and 14 ECHR, as well as Art. 17 TFEU. To the extent that the complainant objected to the forwarding of his data within the community or stated that he had expressly opposed the forwarding of his data, the respondent explained that the transfer of his data to the **** office was necessary, as the **** office was responsible for the administration of the board and the **** committee, and the **** committee also had the final decision in membership matters. The respondent reiterated in this context that questions regarding membership are considered internal matters of a religious community.

Regarding the alleged violation of the right to information, the respondent confirmed that the complainant had submitted a request for information to them on June 8, 2020. However, since they had already complied with the request on June 26, 2020, it was not understandable for them why the complainant claimed that his right to information had been violated.

Concerning the alleged violation of the right to deletion, the respondent stated that the regulation of membership and the resulting consequences constituted an essential part of the core of the self-determination rights of a religious community, which solely belonged to the religious community. In this context, the respondent particularly pointed out that, for example, according to the canon law of the Catholic Church, termination of membership after baptism is no longer possible. The processing of the complainant's data would therefore be necessary in accordance with Art. 17 para. 3 lit. b and e of the GDPR and would contradict the complainant's right to deletion.

3. In the context of the granted opportunity to be heard, the complainant stated in letters dated December 7, 2020, and December 13, 2020 – as far as relevant to the proceedings – that he had been only 13 years old at the time of his baptism and that due to extremely limited and one-sided misinformation, he had not been able to assess the legal contexts and lifelong obligations of membership with the respondent. Furthermore, the announcement of his departure, which he had opposed, would not fall under the religious self-determination rights but rather under the scope of the GDPR. Additionally, according to the constitution of the respondent, it would also be sufficient for the declaration of leaving the community to be made to two persons.

Regarding the alleged violation of the right to information, the complainant referred to the fact that he had already requested complete information in April 2018 and had stated in this context that this also included accompanying letters, introductory letters, assessments of his "spiritual status," information and documents about himself from the **** community archive, and the like. Furthermore, it was evident from an email correspondence that records of his telephone participation in services were also available, which had not been transmitted, resulting in the information being incomplete.

Concerning the alleged violation of the right to deletion, the complainant stated that he was not seeking the deletion of non-sensitive data such as name, address, or date of birth, which must remain stored for documentation of the deletion, but rather all other data.

****B. Subject of the Complaint****

The subject of the complaint is the question of whether the respondent has violated the complainant's right to confidentiality, right to information, right to deletion, and right to objection.

****C. Findings of Fact****

The respondent is a recognized religious community in Austria.

The complainant was baptized on *4.*1.199* and was a member of the respondent's religious community until *4.*7.2020.

The complainant contacted the respondent on March 15, 2020, with a request for information. In a letter dated June 8, 2020, the complainant requested the deletion of his data and opposed the announcement of the termination of his membership during a meeting as well as the related forwarding of data to the **** office of the respondent.

On *4.*7.2020, it was announced at a meeting of the respondent in K***stadt that the complainant is no longer a member of the religious community, and the **** office has been informed of this.

The **** office is responsible for the administration of the **** committee, which makes the final decision on membership matters.

In a letter dated June 26, 2020, the respondent provided the complainant with the following data protection information or informed the complainant that it would not comply with the deletion request: "Data Information of the **** Community K***stadt

Dear Mr. A***,

We respond to your request regarding data protection as follows:

1.

Your data is processed by us in accordance with the General Data Protection Regulation (GDPR).

2.

Below you will receive a copy of the data we have stored:

Name: A***, Richard

Gender: male

Date of Birth: 2*.10. 197*

Address: L***gasse *5/*3/2*, **** H***dorf

Date of Baptism: *4.*1.199*

**** Community: K***stadt

Spiritual Office:

[Note by the editor: exact designation not reproduced for pseudonymization reasons] from *3.*4.2011 to *7.*3.2015

Type of loss of membership: Exclusion from the community

Date of announcement of departure: *4.*7.2020

Basis of decision: Apostasy

Furthermore, we also have a copy of our data information from July 12, 2018.

3.

We retain this minimum amount of personal data to protect and safeguard believers and to keep the **** community pure in accordance with the religious beliefs of the N*** [Note by the editor: quotes from religious texts not reproduced for pseudonymization reasons]. Furthermore, the recording of the history of your status, including your current status as a former member of the N***, is necessary to fulfill our legitimate religious interests. The data is physically stored by us.

Data Information of the **** Community K***stadt

To Mr. A***

The data is processed due to the fact that you have submitted to the religious community law of our religious community with your **** baptism and due to the legitimate interests of the religious community for the following purposes:

- No participation in voluntary services or projects of N***;
- No participation in a gathering, at a **** congress, or a regional congress;
- No assumption of tasks or fulfillment of certain functions in the **** community;
- Documentation of membership status (**** cards of the **** community);

- Documentation of the exercise of spiritual offices;
- No re-baptism;
- Enabling a re-admission procedure.

Data processing that goes beyond mere storage does not occur, except in the following cases: requests for re-admission to the religious community by the affected person; assertion, exercise, or defense of legal claims.

In particular, there is no disclosure or transfer of data to third parties. The data is additionally protected by ensuring that only clergy have access to the data, thus falling under the clergy privilege. The cases in which the aforementioned clergy are permitted access to the data are restrictively minimized by religious legal provisions, so that abusive use of the data is excluded.

4.

The data name, gender, date of birth, date of baptism, **** community, type of loss of membership, date of announcement of departure, and basis of decision were transmitted to the **** office after the conclusion of the **** committee procedure (§ 14 Statutes of the N*** religious community).

Data transmissions to recipients in so-called third countries, that is, states outside the European Union (EU), or to international organizations have not been carried out by us.

5.

The data will be permanently retained for the purpose of proving membership status and documenting the exercise of a spiritual office. In the event of re-admission, the data regarding the type of loss of membership, date of announcement of departure, and basis of decision will generally be destroyed after five years.

6.

The data name, gender, date of birth, baptism date, and **** community were provided by you during your membership.

The data regarding the exercise of a spiritual office arose in connection with your appointment and removal as [Note by the editor: exact designation not reproduced for pseudonymization reasons].

Data Information of the **** Community K***stadt
To Mr. A***

The data regarding the type of loss of membership, date of announcement of departure, and basis of decision were generated during the conduct of the **** committee procedure based on religious community law.

7.

The processing of the data is not related to automated decision-making or profiling.

8.

You are fundamentally entitled to the rights of access, rectification, erasure, restriction of processing, data portability, and objection.

9.

You request the deletion of your personal data. Article 17 of the GDPR allows for the deletion of personal data only if certain grounds are met. We have examined the grounds and see no basis for the deletion of the personal data stored with us. We retain a minimum amount of personal data that is necessary for our legitimate religious purposes in accordance with Article 6 and Article 9(2)(d) of the GDPR.

Rest assured that access to your personal data is strictly limited. Data from a committee procedure is accessible only to a small circle of selected individuals who are also bound by the confidentiality obligation associated with the exercise of a spiritual office. Furthermore, a religious legal provision ensures that your data may not be accessed or processed without special cause. To enable a reopening procedure to avoid a violation of our own religious principles, it is necessary to retain basic personal data with us. The personal data stored with us is the minimum required to fulfill the history of your status, including your current status as a former member of N***, necessary for the exercise of

our right to religious self-determination and in accordance with our own religious principles.

10.

You can reach the Data Protection Officer at:

N*** Religious Community in Austria

Data Protection Officer

E***straße *4

1*** Vienna

Email: DataProtectionOfficer.AT@n***.org

Data inquiry of the **** Community K***stadt

Mr. A***

11.

If you believe that the processing of your data violates data protection law or that your data protection rights have otherwise been violated, you can contact the supervisory authority. For N*** Austria, this is:

Austrian Data Protection Authority

Barichgasse 40-42

1030 Vienna

Email: dsb@dsb.gv.at

It is our sincere hope that you will decide over time to want to become a member of N*** again and to restore your relationship with **** and the ****.

Sincerely,

Assessment of Evidence: The findings arise from the submissions of the parties as well as the submitted documents.

D. Legally, it follows:

It should be noted at the outset that the Data Protection Authority has already addressed the question of whether the provisions of Article 91 of the GDPR apply to the respondent in its decision of August 29, 2019, GZ DSB-D123.874/0016-DSB/2019.

The Data Protection Authority has concluded that the global data protection policies of the respondent do not constitute comprehensive rules for the protection of natural persons in the processing of personal data within the meaning of Article 91(1) of the GDPR and that the data protection policies must therefore be supplemented by state regulations.

The present case must therefore be examined in accordance with the GDPR, taking into account the corporate religious freedom of the respondent (cf. Article 15 StGG, Article 10 EU Charter, Article 9 ECHR in conjunction with Article 6 TEU). However, the applicability of the GDPR requires the jurisdiction of the Data Protection Authority as the supervisory authority under Article 51 of the GDPR, which was not disputed by the respondent.

However, there is a lack of jurisdiction of the Data Protection Authority for substantive decisions where the processing of data is inextricably linked to an "internal matter" of the respondent. According to the case law of the ECtHR, "internal matters" include both the determination of beliefs and expressions as well as the internal organization of the community, such as the designation of the religious leader or who can be a member and who is excluded (cf. Krömer/Brandner in Knyrim, DatKomm Article 91 GDPR, Rz 9).

Regarding Point 1

The fundamental right to data protection enshrined in § 1 DSG, according to whose first paragraph everyone, particularly with regard to the respect for their private and family life, has a claim to the confidentiality of their personal data, as long as there is a legitimate interest in doing so, includes the protection of the affected individual against the collection of their data and the transfer of the data collected about them. However, the fundamental right to data protection is not absolute but may be restricted by certain permissible interventions and must be viewed in light of its social function and weighed against other fundamental rights while maintaining the principle of proportionality.

To the extent that the complainant argued that the respondent was unlawfully processing his data, as

he had at no time given his consent to the...

****Data Processing****

It should first be noted that the complainant – as established – was a member of the religious community of the respondent from *January 4, 199* to *July 4, 2020*. Since questions regarding membership in a religious community – and the associated processing of personal data – fall under the "internal affairs" of the respondent, there is no jurisdiction of the data protection authority in this regard (cf. the ruling of the Constitutional Court of March 16, 1987, VfSlg 11300, as well as the decision of the former Data Protection Commission of November 16, 2007, GZ K121.309/0010-DSK/2007).

To the extent that the complainant considered his right to confidentiality violated because the respondent publicly announced during a meeting in K***stadt on *July 4, 2020*, that he was no longer a member of N***, it should be noted that both the design of the worship service and questions regarding membership in a religious community are undoubtedly to be regarded as an "internal affair" of the respondent, which is exempt from the jurisdiction of the data protection authority.

To the extent that the complainant perceived a violation of his right to confidentiality in that the respondent transmitted his data to the **** office, it should be noted that the respondent convincingly demonstrated that the transmission of the data to the **** office was necessary, as the **** office is responsible for the management of the board and the **** committee, and the **** committee also has the final decision in membership matters. Since the data transmission is therefore also attributable to the "internal affairs" of the respondent, there is likewise no jurisdiction of the data protection authority in this regard.

The complaint has therefore proven to be unjustified in this respect and was therefore to be dismissed in accordance with § 24 Abs. 5 DSG.

****To Point 2****

The data protection right to information allows the affected person to request confirmation as to whether a controller is processing their personal data. In the event that a controller processes data about the affected person, they have a right to information about this data as well as about the information defined in paragraph 1 lit. a to h of the relevant legal text [Note by the editor: referring to Art. 15 Abs. 1 GDPR]. The purpose of this provision is to enable the affected person to gain insight into the "whether and how" of the processing (Art. 4 Z 2 GDPR) of their data, thereby allowing the affected person to verify the legality of the processing. The right to information and the associated information also serve effective legal enforcement (cf. Paal in Paal/Pauly, General Data Protection Regulation, Art. 15, Rz 3).

According to the opinion of the data protection authority, the information provided by the respondent is to be regarded as complete in the sense of Art. 15 GDPR.

To the extent that the complainant claimed that the information from the respondent was incomplete because he was not provided with information regarding accompanying letters, introductory letters, assessments of his "mental state," and no information and documents from the **** community archive as well as records of his telephone participation in worship services, it should first be noted that the data protection authority, based on Recital 63 and the judgment of the CJEU of July 17, 2014, YS et al., C-141/12 and C-372/12, holds the view that Art. 15 Abs. 3 GDPR does not derive a right to the release of a copy of documents containing personal data of an information requester (cf. the decision of November 13, 2019, GZ DSB-D062.268/0001-DSB/2019). Citing Art. 15 Abs. 3 GDPR, it is therefore not possible to demand the release of entire documents or – as in the present case – accompanying letters, introductory letters, or assessments of the "mental state," even if they may contain personal data of an information requester (cf. in this sense also the judgment of the Commercial Court of Vienna of October 7, 2019, GZ 18 C 263/19m regarding the issuance of an insurance policy). Art. 15 Abs. 3 GDPR merely regulates the right to receive a "copy of the personal data that are the subject of the processing," which is why it suffices for the controller to provide the affected person with a copy of the personal data contained in the documents.

Furthermore, it should also be noted that accompanying letters, introductory letters, assessments of the "mental state" of the members, as well as information and documents from the **** community archive of the respondent and any records of telephone participation in worship services are undoubtedly attributable to the "internal affairs" of the respondent, as they document the specific design of the membership relationship.

The complaint has therefore proven to be unjustified in this respect and was therefore to be dismissed in accordance with § 24 Abs. 5 DSG.

****To Point 3****

According to Art. 17 Abs. 1 GDPR, an affected person has the right to request the immediate deletion of their personal data from the controller (first case), and furthermore, the controller is also obliged to delete personal data...

to be deleted immediately (second case) if one of the reasons stated in Art. 17 para. 1 lit. a – lit. f GDPR applies.

As far as the complainant requested the deletion of his data from the respondent – with the exception of his name, address, and date of birth – it should be noted that the complainant is currently no longer a member of the respondent; however, this does not change the fact that the respondent evidently continues to regard the complainant as a purely spiritual member. In this context, the respondent referred to the fact that, as in the Catholic Church, termination of membership after baptism is no longer possible.

Since, as previously stated, questions of membership in a religious community and the associated processing of personal data – deletion is considered a form of processing under Art. 4 para. 2 GDPR – represent an "internal matter" of the respondent, there is also no jurisdiction of the data protection authority in this regard.

The complaint has therefore proven to be unfounded in this respect and was therefore to be dismissed in accordance with § 24 para. 5 DSG.

Regarding point 4

First, it should be stated that while the complainant claimed a violation of the right to restriction, it is evident from his statements that he actually meant a violation of the right to object. The complainant stated that he opposed the public announcement that he was no longer a member of N***, as well as the forwarding of his data to the **** office. Since party statements are to be interpreted solely according to their objective meaning (see, for example, the ruling of the Administrative Court of July 28, 2000, GZ 94/09/0308), the complaint therefore also concerns an alleged violation of the right to object.

However, the complaint has proven to be unfounded in this respect:

Even though the complainant opposed the announcement of the termination of his membership and the forwarding of his data, the announcement of the termination of membership at a meeting and the related forwarding to the **** office should be qualified as an "internal matter" of the respondent (see already point 1) and thus removed from the decision of the data protection authority.

The complaint has therefore proven to be unfounded in this respect and was therefore to be dismissed in accordance with § 24 para. 5 DSG.

It was decided accordingly.